

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leilani Rhodes	Team: Squad #09	CCRB Case #: 201810045	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/18/2018 8:15 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 12/3/2020	Precinct: 83
Date/Time CV Reported Mon, 12/03/2018 3:40 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/03/2018 3:40 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			083 PCT
2. SGT John Dammacco	05117	946892	INT CIS
3. POM Michael Losada	13658	953013	083 PCT
4. Officers			083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Pagan	15375	957000	083 PCT
2. LT David Reilly	00000	929018	E S U

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Losada	Abuse: Police Officer Michael Losada entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . An Officer	Force: An officer used physical force against § 87(2)(b)	B . Exonerated
C . SGT John Dammacco	Abuse: Sergeant John Dammacco refused to show the search warrant to § 87(2)(b)	C . Unsubstantiated
D . POM Michael Losada	Abuse: Police Officer Michael Losada searched § 87(2)(b), in Brooklyn.	D . Exonerated
E . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	E . Exonerated
F . Officers	Abuse: Officers seized § 87(2)(b)'s property.	F . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on December 3, 2018.

On October 18, 2018, at approximately 8:15 p.m., § 87(2)(b) and his wife, § 87(2)(b) § 87(2)(b) were in their apartment, located at § 87(2)(b), in Brooklyn, when PO Michael Losada from the 83rd Precinct entered his apartment (**Allegation A: Abuse of Authority, exonerated**). § 87(2)(b) stated that an officer aggressively jumped on top of him and handcuffed him (**Allegation B: Force, exonerated**). § 87(2)(b) asked an officer to see the search warrant and it was never shown to him (**Allegation C: Abuse of Authority, unsubstantiated**). PO Losada searched § 87(2)(b)'s apartment (**Allegation D: Abuse of Authority, exonerated**). The search resulted in the officers damaging § 87(2)(b)'s sofa, bed, and wall unit inside his apartment (**Allegation E: Abuse of Authority, exonerated**). § 87(2)(b) stated that his property was removed from his apartment (**Allegation F: Abuse of Authority, exonerated**). § 87(2)(b) and § 87(2)(b) were arrested and each charged with § 87(2)(b).

§ 87(2)(b) (Board Review 01).

§ 87(4-b) § 87(2)(g)

No video footage was obtained for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Losada entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: An officer used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Michael Losada searched § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Officers damaged § 87(2)(b)'s property.

Allegation (F) Abuse of Authority: Officers seized § 87(2)(b)'s property.

It is undisputed that on the date of incident, officers entered and searched § 87(2)(b) in Brooklyn, under a valid “no-knock” search warrant, § 87(2)(b) which was obtained by PO Losada and issued by the Supreme Court of the State of New York (Kings County) for narcotics. § 87(2)(b) is listed as the subject of the search warrant (Board Review 02). The Search Warrant Post Execution Critique notes that over \$2,000 was seized for forfeiture (Board Review 11).

§ 87(2)(b) alleged that when the officers entered, they jumped on top of him, grabbed his right arm, and handcuffed him. § 87(2)(b) also alleged that items in his home were broken due to the search.

As per the NYS Procedure Law (CPL) 690.50, officers may enter and search a location for which they have a valid search warrant, and they may do so without providing notice of their authority and purpose (Board Review 03). NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to place a person in custody or to prevent escape from custody (Board Review 10).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A, Allegation B, and Allegations D-F** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Sergeant John Dammacco refused to show the search warrant to § 87(2)(b)

§ 87(2)(b) stated that he said, “You not showing me the warrant, where is the warrant” to an officer and was told, “The judge signed the warrant.” § 87(2)(b) stated that he asked the officer to see the warrant again, and it was not shown to him.

Sgt. Dammacco stated that he was in possession of the warrant and showed it to § 87(2)(b). He stated that § 87(2)(b) did not request to see the warrant, but he showed it to him anyway. PO Pagan’s statement was generally consistent with Sgt. Dammacco’s statement.

PO Losada did not remember if § 87(2)(b) requested to see the search warrant or if the warrant was shown to him.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Subject Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (Board Review 04).
- This is the first complaint to which § 87(2)(b) has been a party (Board Review 09).
- Sgt. John Dammacco has been a member of service for 11 years and has been a subject in eight CCRB complaints and nine allegations, none of which were substantiated.

- PO Michael Losada has been a member of service for seven years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was unsuitable for mediation.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of October 23, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 06).

Squad No.: _____

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____